

CASE SUMMARY

State v. Shehzad

SC No. 898/2023 | FIR No. 717/2022, PS Jafrabad | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	15 January 2026 (date of inspection / offence: 8 March 2022)
PARTIES	State (BSES Yamuna Power Ltd.) v. Shehzad, R/o Jafrabad, Delhi
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B & 106, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.
RESULT	Convicted under Section 135, Electricity Act, 2003. Civil liability on the theft bill (Rs. 80,516/-) settled and the amount deposited during trial. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether the accused Shehzad dishonestly abstracted electricity at his premises by puncturing the licensee's service cable and drawing supply ahead of the meter, so as to attract Section 135(1)(a) of the Electricity Act, 2003; and whether, an unauthorised means of abstraction having been proved, he discharged the onus cast by the presumption in the third proviso to Section 135(1).

FACTS

On 8 March 2022, an inspection team of BSES Yamuna Power Ltd. inspected the premises of the accused Shehzad. The licensee's service cable was found punctured, the supply being drawn directly through the puncture so as to bypass measurement. The connected load was 5.427 KW. The accused was present at the inspection. The proceedings were videographed and a Section 65B certificate furnished; an Inspection Report, Load Report, Seizure Memo and advisory notice were prepared at the spot. Following the applicable tariff the company assessed a theft demand of Rs. 80,516/-, which went unpaid, and on its Authorised Officer's complaint FIR No. 717/2022 was registered at PS Jafrabad.

A notice under Section 251 Cr.P.C. was served and the accused pleaded not guilty. The inspecting officials and the Investigating Officer were examined and the videography and Section 65B certificate proved. Under Section 313 Cr.P.C. the accused denied the allegations and pleaded false implication, and led no defence evidence. His counsel submitted that the civil liability had been settled and the settlement amount deposited during trial.

REASONING OF THE COURT

HEADNOTE

Puncturing the licensee's service cable to draw supply ahead of the meter is a direct, artificial abstraction under Section 135(1)(a); the accused being present at the videographed inspection, his identity as the person indulging in theft was fixed, and the unrebutted third-proviso presumption — he leading no evidence and producing no paid bills — convicts. Settlement of the theft bill corroborates, rather than closes, the criminal charge.

A punctured service cable is a clause (a) abstraction. The Court set out the ingredients of Section 135(1), importing Section 24 IPC for “dishonestly,” and treated the puncturing of the licensee's service cable — drawing supply ahead of the meter — as a clause (a) tapping of the licensee's line. On proof of that artificial means the third proviso's presumption of dishonest use arose.

The accused's presence at the videographed inspection fixed his identity. Unlike the abetment cases where the user had absconded, Shehzad was present at the inspection of his own premises; the videography and the Section 65B certificate established the factum and manner of the abstraction and fixed him as the person indulging in the theft.

The electronic record was duly proved. The videography was accompanied by a Section 65B certificate, satisfying the condition for admissibility of the electronic record; the officials' consistent testimony proved the inspection, the punctured cable and the connected load.

The absence of a public witness did not weaken the prosecution. No animosity of the officials was shown; on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010), non-examination of an independent witness is no infirmity.

The presumption was compulsory, and settlement of the bill fortified the case. Following *Neeraj Dutt* (compulsory “shall presume”) and *Hiten P. Dalal* (prudent-man standard), the Court held that Shehzad, having led no defence evidence and produced no paid bills (*Mukesh Rastogi*; Section 106 onus), failed to rebut the presumption; and his settlement and deposit of the Rs. 80,516/- bill corroborated the theft rather than answering the criminal charge.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee's overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated the abstraction of supply by puncturing the licensee's service cable to draw power ahead of the meter as satisfying the requirement of dishonest intention.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

HELD

The prosecution proved beyond reasonable doubt that the accused Shehzad abstracted electricity by puncturing the licensee's service cable and drawing supply ahead of the meter, an offence punishable under Section 135 of the Electricity Act, 2003, and that he led no evidence to rebut the statutory presumption. **Shehzad is accordingly convicted under Section 135 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

SIGNIFICANCE

A sole-accused, direct-theft conviction where the accused was present at inspection — contrasting the owner-abettor pattern. Five propositions stand out:

- **Puncturing the service cable is direct theft.** Drawing supply through a puncture in the licensee's service cable, ahead of the meter, is a clause (a) abstraction — no separate hooked wire is needed.
- **Presence at inspection fixes identity.** Where the accused is himself present at the videographed inspection of his premises, the recurring “who was the user” defence is unavailable.
- **A Section 65B certificate secures the video.** The certified videography proved the manner of abstraction and dispensed with any need for a public witness.
- **Settlement corroborates guilt.** Settling and depositing the theft bill was read as conduct inconsistent with innocence, not a neutral compromise.
- **The reverse-onus presumption did the rest.** No meter reading, an unexplained tapped load, no paid bills — the compulsory presumption convicted (*Neeraj Dutt; Hiten P. Dalal; Mukesh Rastogi*).

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court's own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	“Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

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